

SENATE No. 871

The Commonwealth of Massachusetts

PRESENTED BY:

John F. Keenan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring equal access to medical treatments essential for people with a developmental disability, intellectual disability, or autism.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/20/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/27/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/20/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/28/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/30/2025</i>

SENATE No. 871

By Mr. Keenan, a petition (accompanied by bill, Senate, No. 871) of John F. Keenan, James B. Eldridge, James K. Hawkins, Michael O. Moore and other members of the General Court for legislation to require MassHealth to cover medical treatments essential for people with a developmental disability, intellectual disability, or autism. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring equal access to medical treatments essential for people with a developmental disability, intellectual disability, or autism.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 118E of General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 79 the following section:-

3 Section 80. The division shall cover the cost of habilitative and rehabilitative medically
4 necessary treatments for individuals aged 21 and older who are receiving coverage under this
5 chapter and who have been diagnosed with any of the following disorders as defined in the most
6 recent version of the diagnostic and statistical manual of mental disorders (DSM): developmental
7 disability, an intellectual disability or autism spectrum disorder. The diagnoses must be made by
8 a licensed physician or a licensed psychologist who determines the care to be medically
9 necessary. Treatments shall include, but shall not be limited to, applied behavior analysis
10 provided or supervised by a licensed behavior analyst that is necessary to develop, maintain or
11 restore, to the maximum extent practicable, the functioning of an individual. In addition, the

- 12 division shall cover the cost of both dedicated and non-dedicated augmentative and alternative
- 13 communication devices, including, but not limited to, medically necessary tablets.